

and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom of Great Britain and Ireland, and apply towards making good the supply granted to His Majesty for the service of the year ending on the thirty-first day of March one thousand nine hundred and eleven, the sum of fifteen million eight hundred and sixty thousand six hundred pounds.

Issue of
15,860,600*l.*
out of the
Consolidated
Fund for the
service of the
year ending
31st March
1911.

2.—(1) The Treasury may borrow from any person, by the issue of Treasury Bills or otherwise, and the Bank of England and the Bank of Ireland may advance to the Treasury on the credit of the said sum, any sum or sums not exceeding in the whole fifteen million eight hundred and sixty thousand six hundred pounds.

Power for the
Treasury to
borrow.

(2) The date of payment of any Treasury Bills issued under this section shall be a date not later than the thirty-first day of March one thousand nine hundred and eleven, and section six of the Treasury Bills Act, 1877 (which relates to the renewal of bills), shall not apply with respect to those bills.

40 & 41 Vict.
c. 2.

(3) Any money borrowed otherwise than on Treasury Bills shall be repaid, with interest not exceeding five pounds per cent. per annum, out of the growing produce of the Consolidated Fund, at any period not later than the next succeeding quarter to that in which the money was borrowed.

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

3. This Act may be cited as the Consolidated Fund (No. 2) Act, 1910.

Short title.

CHAPTER 10.

An Act to amend the Police (Scotland) Act, 1890.

[26th July 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. This Act may be cited for all purposes as the Police (Scotland) Act (1890) Amendment Act, 1910.

Short title.

2. This Act shall come into operation on the first day of January one thousand nine hundred and eleven and shall extend to Scotland only.

Commence-
ment.

3. The Police (Scotland) Act, 1890, is herein-after referred to as the principal Act, and this Act shall be construed as one with the principal Act.

Construction.
53 & 54 Vict.
c. 67.

Repeal.

4. Section three and subsection (3) of section twenty-five of the principal Act are hereby repealed.

Pensions.

5. In lieu of section three of the principal Act the following provisions shall apply:—

(1) The pensions, allowances, and gratuities granted to constables of a police force and to their widows and children shall be in accordance with the pension scale for the force:

(2) The pension scale for a force shall be—

(a) As regards pensions granted in accordance with section one (a) of the principal Act, the scale set forth in Part I. of the First Schedule to the principal Act;

(b) As regards pensions granted in accordance with section one (b) of the principal Act, the scale set forth in the Schedule to this Act;

(c) As regards special pensions and allowances and gratuities, the scale set forth in Part II. of the First Schedule to the principal Act as read with the Police Act, 1909; provided that a special pension awarded to a constable with more than twenty years' approved service shall not be less than the pension which would be awarded to the constable if the pension were granted in accordance with section one (b) of the principal Act; and

(3) The rules contained in Part III. of the First Schedule to the principal Act shall apply to all pensions, allowances, and gratuities granted under the principal Act and this Act.

9 Edw. 7. c. 40.

Pensions to
constables
continuing to
serve after
qualification
for pension.

6.—(1) Where a constable in a police force to which the principal Act applies is entitled to retire on a pension without a medical certificate, but continues to serve in the force, the police authority may, if they think fit, direct that he shall be entitled, on retiring at any time thereafter, to receive a pension not less in amount than that to which he would have been entitled if he had retired instead of continuing in the force, and in such case the right to receive on retirement such pension shall not, while the constable continues to serve in the force, be liable to forfeiture, except in the cases in which a pension when granted is liable to forfeiture under section eight of that Act.

(2) Before giving any such direction, and every year thereafter, the police authority shall cause the constable to be examined by some duly qualified medical practitioner, and, if on any such examination it is found that the constable is not physically fit for further service, the police authority shall not permit him to continue to serve in the force.

(3) Where such a direction is given, any extra pay that may be granted to the constable in consideration of his continuing

to serve after becoming entitled to retire on pension shall not be reckoned in the calculation of the amount of pension or gratuity awarded under the principal Act, and no rateable deduction shall be made from such extra pay under section fifteen of the principal Act.

7.—(1) Where a constable, who has retired without a pension from a police force to which the principal Act applies, subsequently rejoins that force after the passing of this Act, or has so rejoined the force before that date, the police authority shall allow him to reckon in his approved service the period of the approved service which he was entitled to reckon at the end of his previous service, if the constable repays to the police authority the amount of any gratuity which may have been granted to him, or of any rateable deductions from his pay which may have been paid to him by the police authority in respect of his previous service.

Reckoning of discontinuous service as approved service for pension.

(2) The repayment shall be effected by means of deductions from pay or otherwise as the police authority may determine, and all sums so repaid shall be carried to the pension fund.

8.—(1) Where a constable, who has retired without a pension from a police force to which the principal Act applies, subsequently joins some other such police force after the passing of this Act, or has so joined such other force before that date, the police authority of that other force may, if they think fit, allow him to reckon in his approved service the period of approved service, not being less than three completed years, which he was entitled to reckon at the end of his service in the first-mentioned force, if the constable pays to the police authority of that other force the amount of any gratuity which may have been granted to him or of any rateable deduction from his pay which may have been paid to him in respect of his service in the first-mentioned force; but nothing in this provision shall affect a constable's rights under subsection (4) of section four of the principal Act; and subsection (2) of section fifteen of that Act shall not apply.

Reckoning of approved service in different forces.

(2) The payments by the constable shall be effected by means of deductions from pay or otherwise as the police authority may determine, and all sums so paid shall be carried to the pension fund.

9.—(1) Where a constable of a police force to which the principal Act applies has, in pursuance of a Royal proclamation, been called into actual service as a member of any Royal Naval Reserve force, or been called out for permanent service as a member of the Army Reserve, his period of service under that proclamation may, if the police authority think fit, be reckoned in the computation of approved service.

Approved service in case of Naval and Army Reservists.

(2) Subsection (5) of section four of the principal Act (which relates to the computations of approved service of constables who belong to the Army Reserve or Naval Reserve) shall apply

to constables who belong to any Royal Naval Reserve force, with the substitution of "required for training or called into actual service" for "called out for training or for permanent service."

2 Edw. 7. c. 10.

(3) The Police Reservists Act, 1902, is hereby repealed.

Amendment of
53 & 54 Vict.
c. 67 as to for-
feiture of
pensions.

10. After paragraph (d) of section eight of the principal Act (which specifies the cases in which a pension or an allowance under that Act becomes liable to be forfeited wholly or in part, and permanently or temporarily) there shall be added the following new paragraphs:—

or

- (e) if the grantee supplies to any person or publishes in a manner which the police authority consider to be discreditable or improper any information of a confidential nature which he may have obtained in the course of his employment in the police; or
- (f) if the grantee solicits, or, without the consent of the police authority, accepts directly or indirectly any testimonial or gift of a pecuniary value on his retirement from the police; or
- (g) if the grantee enters into or continues in any business, occupation, or employment as a private detective, after being prohibited to do so by the police authority on any reasonable ground.

Age of ap-
pointment
and transfer.

11.—(1) The word "thirty" occurring in subsection (2) of section twenty-five of the principal Act shall be deleted and the words "forty-five" shall be inserted in lieu thereof: Provided that the said subsection shall not apply to the case of a person transferred or appointed to the post of chief constable.

(2) The words "Great Britain" occurring in subsection (4) of section four and in subsection (6) of section twenty-seven of the principal Act shall be deleted and the words "the United Kingdom" shall be inserted in lieu thereof.

(3) Subsection (3) of section twenty-five of the principal Act shall no longer have effect, and in lieu thereof the following provision shall be inserted:—

The limit of age of a person not serving in a police force on appointment to the post of chief constable shall be forty-five years. In the case of promotion or transfer of a person serving in a police force to the post of chief constable in the same or another police force, the limit of age shall be fifty-five years.

Investment
of pension
fund.

12. Notwithstanding anything in subsection (3) of section eighteen of the principal Act, it shall be lawful for any police authority to invest any money belonging to the pension fund of the police force administered by it, and held by it for investment, in or upon any mortgage, bond, debenture, debenture stock, corporation stock, annuity, rentcharge, rent, or other security (not being securities payable to bearer) authorised by or under

any Act of Parliament or any Provisional Order confirmed by Act of Parliament passed or to be passed of any local authority, as defined by section thirty-four of the Local Loans Act, 1875, or by subsection (1) of section four of the Local Authorities Loans (Scotland) Act, 1891.

39 & 40 Vict.
c. 83.
54 & 55 Vict.
c. 34.

13.—(1) In a police force to which the principal Act applies, retirement shall be compulsory for every constable above the rank of inspector on his attaining sixty-five years of age, except that in special cases the police authority may with the consent of the Secretary for Scotland extend any such constable's service for a further period, in no case exceeding five years, on being satisfied that the constable's retirement at sixty-five would be detrimental to the interests of the police force; but nothing in this section shall be construed as in anywise affecting the retirement of a constable holding a rank above that of inspector before the passing of this Act.

Age of compulsory retirement.

(2) Where a constable is compelled to retire under this section, and is not entitled without a medical certificate to retire and receive his pension, he shall be entitled to receive such a pension or may be granted such a gratuity as he would have been entitled to receive, or as might have been granted to him, had he then retired on a medical certificate.

14. In subsection (1) of section four of the principal Act, after the words "constable belongs" there shall be inserted the words "not exceeding the period of the sickness, misconduct, or neglect of duty, or the period during which he is suspended from duty on account thereof."

Amendment of section four of principal Act.

SCHEDULE.

PENSION SCALE.

The pension to a constable on retirement shall be as follows (that is to say) :—

- (a) If he has completed twenty but less than twenty-one years of approved service, an annual sum equal to twenty-sixtieths of his annual pay; and
- (b) If he has completed twenty-one years or more approved service, an annual sum equal to twenty-sixtieths of his annual pay, with an addition of two-sixtieths of his annual pay for every completed year of approved service above twenty years, so however that the pension shall not exceed two-thirds of his annual pay.